BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **DIANA CANDELARIA, in her individual capacity; STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity; and DOES 1 through 10, inclusive,** Defendants.	Case No. 3:26-cv-08272-LJC **PLAINTIFF'S NOTICE OF MOTION AND MOTION TO STRIKE DEFENDANTS' ANSWER (ECF NO. 11) PURSUANT TO FED. R. CIV. P. 12(f); OR, IN THE ALTERNATIVE, TO STRIKE AFFIRMATIVE DEFENSES; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT** Date: November 12, 2026 Time: 1:30 p.m. Courtroom: Videoconference (Zoom) Judge: Hon. Lisa J. Cisneros Action Filed: August 10, 2026 Operative FAC: August 17, 2026

PLAINTIFF'S NOTICE OF MOTION AND MOTION TO STRIKE DEFENDANTS' ANSWER (ECF NO. 1

PURSUANT TO FED. R. CIV. P. 12(f); OR, IN THE ALTERNATIVE, TO STRIKE AFFIRMATIVE DEFEN

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on November 12, 2026, at 1:30 p.m., or as soon thereafter as the matter may be heard, before the Honorable Lisa J. Cisneros, United States Magistrate Judge, United States District Court for the Northern District of California, appearing via Zoom

videoconference (https://cand.uscourts.gov/ljc) or in such courtroom as the Court may designate, Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, will and hereby does move this Court, pursuant to Federal Rule of Civil Procedure 12(f), for an order:

1. Striking in its entirety the Answer filed by Defendants Diana Candelaria and Steve Gordon on September 4, 2026 (ECF No. 11), on the ground that it is directed solely to Plaintiff's original Complaint (Dkt. 1) filed August 10, 2026, which was superseded in full on August 17, 2026 by Plaintiff's First Amended Complaint (Dkt. 6), rendering the Answer a procedural nullity that is redundant, immaterial, and impertinent under Rule 12(f);

2. In the alternative, if the Answer is not stricken in its entirety, striking all thirty-three (33) Affirmative Defenses asserted in Defendants' Answer (ECF No. 11 at 32:20-35:20), or specific subsets thereof, on the grounds that they are legally insufficient, impertinent, redundant, immaterial, fail to satisfy the pleading standards of Federal Rules of Civil Procedure 8 and 12(f), and consist of bare boilerplate legal conclusions devoid of factual support, raw template drafting placeholders ('xxx'), inapplicable state-law tort immunities that cannot bar federal civil rights claims under 42 U.S.C. § 1983, irrelevant employment discrimination statutes of limitations, and legally untenable defenses contrary to binding Supreme Court and Ninth Circuit precedent;

3. Ordering Defendants to file and serve an answer addressing the operative First Amended Complaint (Dkt. 6) within fourteen (14) days of the Court's order, and instructing Defendants that any such answer must strictly conform to Federal Rule of Civil Procedure 8(b) without evasive boilerplate asserting that 'the law speaks for itself'; and

4. Granting such other and further relief as the Court deems just and proper.

This Motion is based upon this Notice of Motion, the attached Memorandum of Points and Authorities, the Court's records and files in this action (including Dkt. 1, Dkt. 4, Dkt. 5, Dkt. 6, Dkt. 8, and ECF No. 11), the attached Proof of Service, and such further argument or evidence as may be presented at or before the hearing.

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

On September 4, 2026, Defendants Diana Candelaria and Steve Gordon filed a 37-page Answer (ECF No. 11). On the face of page 1, Defendants expressly state that they are answering "Plaintiff Brendan Ngwa Nforbi's COMPLAINT FOR DAMAGES AND FOR DECLARATORY AND INJUNCTIVE RELIEF ('Complaint') (Document 1) filed on August 10, 2026." (ECF No. 11 at 1:26-28.) The Answer then proceeds paragraph by paragraph through the 136 paragraphs of that original August 10 pleading, concluding with 33 boilerplate affirmative defenses.

There is a fatal procedural defect in Defendants' filing: Plaintiff's original Complaint (Dkt. 1) has not been the operative pleading in this case for weeks. On August 17, 2026, Plaintiff filed his conforming First Amended Complaint ("FAC") (Dkt. 6). On August 21, 2026, Plaintiff served that operative FAC on both Defendants by first-class mail at the California Department of Motor Vehicles Legal Affairs Division. On August 24, 2026, Plaintiff filed a formal Notice Identifying Operative First Amended Complaint (Dkt. 8), specifically alerting the Court and all parties that Dkt. 6 is the sole operative pleading of record and that the earlier complaints were superseded in full under Federal Rule of Civil Procedure 15(a) and *Lacey v. Maricopa County*, 693 F.3d 896, 927 (9th Cir. 2012) (en banc).

Under bedrock Ninth Circuit law, an amended complaint supersedes the original complaint in its entirety, and the original complaint is treated thereafter as non-existent. *Ramirez v. County of San Bernardino*, 806 F.3d 1002, 1008 (9th Cir. 2015); *Hal Roach Studios, Inc. v. Richard Feiner & Co.*, 896 F.2d 1542, 1546 (9th Cir. 1990). An answer directed to a superseded complaint is a procedural nullity: it fails to join issue on the operative claims, responds to allegations that no longer control, and leaves the actual operative pleading unanswered. Federal courts routinely strike answers responding to superseded pleadings pursuant to Federal Rule of Civil Procedure 12(f).

Even if the Answer were not stricken in its entirety, each of Defendants' thirty-three (33) Affirmative Defenses must be stricken. Defendants' affirmative defenses represent the worst form of boilerplate pleading. They consist of one-sentence legal slogans devoid of a single supporting fact; negative defenses that merely dispute Plaintiff's prima facie burden; state-law tort immunities that have zero application to federal civil rights claims under 42 U.S.C. § 1983; an irrelevant Title VII employment discrimination statute of limitations; unsupportable claims of quasi-judicial absolute immunity for DMV hearing officers; an invalid 'reservation of rights' to amend; and raw, unedited internal drafting placeholders ('xxx' and 'xx') that confirm counsel copied an unvetted template without reading the operative complaint.

Finally, Defendants' pervasive refusal to admit or deny factual allegations—relying on the canned evasion that allegations 'purport to be conclusions of law' and 'the law speaks for itself'—violates Federal Rule of Civil Procedure 8(b). Plaintiff respectfully requests that the Court strike the Answer in its entirety with leave to answer the operative FAC (Dkt. 6) within fourteen (14) days, or, in the alternative, strike the thirty-three affirmative defenses and direct compliance with Rule 8(b).

II. RELEVANT PROCEDURAL BACKGROUND

On August 10, 2026, Plaintiff filed his original Complaint for Damages and for Declaratory and Injunctive Relief under 42 U.S.C. § 1983 and 28 U.S.C. §§ 2201-2202 (Dkt. 1). Summonses were issued the same day as to Defendant Diana Candelaria, individually, and Defendant Steve Gordon, Director of the California DMV, in his official capacity (Dkt. 2).

On August 14, 2026, the Sacramento County Sheriff personally served both Defendants with the summons at the DMV Legal Affairs Division in Sacramento. That same day, Plaintiff filed a First Amended Complaint (Dkt. 5).

On August 17, 2026, Plaintiff filed a conforming First Amended Complaint (Dkt. 6), which omitted an unverified citation and constitutes the operative complaint of record in this action. (See Matter 33 Docket, Dkt. 6.)

On August 21, 2026, Plaintiff served a copy of the operative First Amended Complaint (Dkt. 6) on both Defendant Candelaria and Defendant Gordon by United States first-class mail deposited at San Jose, California, addressed to each Defendant at the DMV Legal Affairs Division, Mail Station C128, 2415 First Avenue, Sacramento, CA 95818. A formal Proof of Service certifying this service was executed on August 21, 2026. (See Proof of Service, Dkt. 6 Mailed to Candelaria and Gordon, Aug. 21, 2026.)

On August 24, 2026, to ensure that the docket clearly reflected which pleading was operative before any responsive pleading or motion was due, Plaintiff filed and served a formal 'Notice Identifying Operative First Amended Complaint' (Dkt. 8). That Notice expressly advised the Court and all parties that:

'3. The operative pleading of record is the First Amended Complaint filed August 17,

2026 as Dkt. 6. The earlier First Amended Complaint filed August 14, 2026 as Dkt. 5 is superseded in full and is of no further force or effect. See Fed. R. Civ. P. 15(a); Lacey v. Maricopa County, 693 F.3d 896, 927 (9th Cir. 2012) (en banc). 4. This Notice does not amend, supplement, or withdraw any allegation in Dkt. 6. It is filed only to identify the operative pleading clearly on the face of the docket before any responsive pleading or Rule 12 motion.' (Dkt. 8 at 1-2.)

On September 4, 2026, Defendants filed their Answer (ECF No. 11). Despite having been served with the FAC two weeks earlier, and despite the explicit August 24 Notice on the docket, Defendants answered the superseded August 10 Complaint (Dkt. 1). Paragraph 1 of the Answer states unequivocally:

'Defendants DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity (collectively referred to as "Defendants"), answer Plaintiff Brendan Ngwa Nforbi's COMPLAINT FOR DAMAGES AND FOR DECLARATORY AND INJUNCTIVE RELIEF ("Complaint") (Document 1) filed on August 10, 2026, as set forth below.' (ECF No. 11 at 1:26-28.)

Defendants did not answer the operative First Amended Complaint (Dkt. 6). Plaintiff now timely moves to strike the Answer pursuant to Federal Rule of Civil Procedure 12(f).

III. LEGAL STANDARD UNDER FED. R. CIV. P. 12(f)

Federal Rule of Civil Procedure 12(f) provides that the court 'may strike from a pleading an insufficient defense or any redundant, immaterial, impertinent, or scandalous matter.' Fed. R. Civ. P. 12(f). The purpose of a motion to strike under Rule 12(f) is to 'avoid the expenditure of time and money that must arise from litigating spurious issues by dispensing with those issues

prior to trial.' *Whittlestone, Inc. v. Handi-Craft Co.*, 618 F.3d 970, 973 (9th Cir. 2010); *Fantasy, Inc. v. Fogerty*, 984 F.2d 1524, 1527 (9th Cir. 1993), rev'd on other grounds, 510 U.S. 517 (1994).

Matter is 'immaterial' if it has no essential or important relationship to the claim for relief or the defenses being pleaded, and 'impertinent' if it consists of statements that do not pertain, and are not necessary, to the issues in question. *Fantasy, Inc.*, 984 F.2d at 1527. An affirmative defense is 'insufficient' if it fails as a matter of law or fails to satisfy federal pleading standards. *Barnes v. AT&T Pension Benefit Plan*, 718 F. Supp. 2d 1167, 1171 (N.D. Cal. 2010).

Under Rule 12(f)(2), a party must make a motion to strike 'within 21 days after being served with the pleading.' Here, Defendants served their Answer electronically on September 4, 2026. This Motion is filed on September 5, 2026, well within the 21-day statutory window.

IV. ARGUMENT

A. The Entire Answer Must Be Stricken Because It Responds to a Superseded Complaint and Is a P

It is black-letter law in the Ninth Circuit that 'an amended complaint supersedes the original, the latter being treated thereafter as non-existent.' *Ramirez v. County of San Bernardino*, 806 F.3d 1002, 1008 (9th Cir. 2015); accord *Hal Roach Studios, Inc. v. Richard Feiner & Co.*, 896 F.2d 1542, 1546 (9th Cir. 1990); *Lacey v. Maricopa County*, 693 F.3d 896, 927 (9th Cir. 2012) (en banc) ('the general rule is that an amended complaint supersedes the original complaint and renders it without legal effect'); *Ferdik v. Bonzelet*, 963 F.2d 1258, 1262 (9th Cir. 1992).

When an amended complaint is filed, the original complaint becomes *functus officio*—it ceases to perform any function in the case. As a direct consequence, an answer directed to a superseded complaint responds to a legal nullity. It fails to join issue on the operative complaint

as mandated by Federal Rule of Civil Procedure 8(b), addresses factual allegations and legal theories that may have been altered or superseded, and leaves the operative First Amended Complaint completely unanswered.

District courts throughout the Ninth Circuit and across the country regularly strike answers responding to superseded complaints. See, e.g., *Stanley v. Trustees of Cal. State Univ.*, 2019 WL 4127201, at *2 (E.D. Cal. Aug. 30, 2019) (striking answer under Rule 12(f) because it was directed to a superseded complaint); *Reyes v. City of Glendale*, 2013 WL 12134015, at *2 (C.D. Cal. Sept. 10, 2013) (holding that defendant's answer to the original complaint was rendered moot and striking it under Rule 12(f) after the first amended complaint became operative); *Northern Valley Commc'ns, LLC v. Qwest Commc'ns Co.*, 2012 WL 523685, at *1 (D.S.D. Feb. 16, 2012) (granting motion to strike answer to original complaint because an amended complaint supersedes the original, rendering the answer to the original 'a legal nullity').

Here, Defendants' Answer explicitly states on page 1 that it answers the 'Complaint (Document 1) filed on August 10, 2026.' (ECF No. 11 at 1:28.) It responds to paragraphs 1 through 136 of Dkt. 1. But Dkt. 1 was superseded on August 17, 2026 by Dkt. 6. Defendants were served with Dkt. 6 on August 21, 2026, and Plaintiff filed a formal Notice of Operative FAC on August 24, 2026 (Dkt. 8). There is no ambiguity on the docket. Defendants simply answered the wrong pleading.

Allowing an answer to a superseded complaint to stand creates severe confusion, clutter, and prejudice. The parties cannot conduct discovery or frame pretrial motions on an answer responding to non-operative allegations. The entire Answer should be stricken under Rule 12(f) as redundant, immaterial, and procedurally improper, with leave granted for Defendants to file an answer addressing the operative First Amended Complaint (Dkt. 6) within fourteen (14) days.

B. In the Alternative, Defendants' Thirty-Three Affirmative Defenses Must Be Stricken

Should the Court decline to strike the Answer in its entirety, Plaintiff moves in the alternative to strike all thirty-three (33) Affirmative Defenses asserted in the Answer (ECF No. 11 at 32:20-35:20). Every single defense is fatally defective under governing law.

1. The Pleading Standard for Affirmative Defenses in the Northern District of California

In the Northern District of California, courts overwhelmingly apply the plausibility standard of *Bell Atl. Corp. v. Twombly*, 550 U.S. 544 (2007), and *Ashcroft v. Iqbal*, 556 U.S. 662 (2009), to affirmative defenses. See, e.g., *Barnes v. AT&T Pension Benefit Plan*, 718 F. Supp. 2d 1167, 1171-72 (N.D. Cal. 2010) (Patel, J.) ('While neither the Ninth Circuit nor the Supreme Court has addressed whether the Twombly-Iqbal standard applies to affirmative defenses, the vast majority of courts in this district have held that the Twombly-Iqbal standard does apply.'); *Perez v. Gordon & Wong Law Group, P.C.*, 2012 WL 1029425, at *6-8 (N.D. Cal. Mar. 26, 2012) (Koh, J.) (applying *Twombly* and *Iqbal* to strike boilerplate affirmative defenses); *CTF Dev., Inc. v. Penta Hospitality, LLC*, 2009 WL 3517617, at *7-8 (N.D. Cal. Oct. 26, 2009) (Alsup, J.) ('Under Twombly and Iqbal, an affirmative defense must contain sufficient factual matter to state a defense that is plausible on its face.').

Under this standard, a defendant must plead sufficient factual content to make the defense plausible, providing fair notice of the factual grounds upon which it rests. Even under the older 'fair notice' test articulated in *Wyshak v. City Nat'l Bank*, 607 F.2d 824, 827 (9th Cir. 1979), fair notice requires pointing to the specific facts connecting the defense to the claims, not merely reciting the legal title of a defense. Naked legal conclusions and bare statutory citations do not survive under either standard.

2. Negative Defenses and Denials Disguised as Affirmative Defenses (Defenses 1, 2, 3, 4, 7, 25, 26)

A defense that points out a defect in the plaintiff's prima facie case is not an affirmative defense. *Zivkovic v. S. Cal. Edison Co.*, 302 F.3d 1080, 1088 (9th Cir. 2002); *Barnes*, 718 F. Supp. 2d at 1173-74. An affirmative defense admits the allegations of the complaint but avoids liability by asserting an independent legal excuse. See *Gomez v. Toledo*, 446 U.S. 635, 640 (1980).

Defenses 1 (lack of standing), 2 (lack of subject matter jurisdiction), 3 (failure to state sufficient facts), 4 (failure to state a claim), and 7 (ripeness / lack of justiciable controversy) assert defects in Plaintiff's prima facie case, not affirmative defenses. They belong in a Rule 12(b) motion or operate as general denials. As Judge Patel explained in *Barnes*, 'Failure to state a claim is not a proper affirmative defense but, rather, asserts a defect in [plaintiff's] prima facie case.' 718 F. Supp. 2d at 1174. Similarly, Defenses 25 (damages not caused by Defendants / breach of Plaintiff's duty) and 26 (causation by third parties) merely negate the causation element of Plaintiff's Section 1983 claim. They are negative defenses and should be stricken.

3. State Tort Immunities and Government Claims Act Provisions Cannot Bar Federal § 1983 Claim

Defenses 9 and 10 allege failure to exhaust administrative remedies under the California Government Claims Act and failure to state claims presented to the Department of General Services (each trailing off with the uncompleted placeholder 'xxx'). Under binding Supreme Court precedent, state notice-of-claim and government claims presentation requirements DO NOT APPLY to federal civil rights claims under 42 U.S.C. § 1983. *Felder v. Casey*, 487 U.S. 131, 140-41 (1988) ('a state law that condition[s] the right of recovery upon compliance with a notice-of-claim requirement cannot be applied to an action brought under § 1983'). Plaintiff asserts federal claims under Section 1983, not state-law tort claims. These defenses are legally insufficient as a matter of law.

Defense 14 asserts a kitchen-sink recitation of California Government Code immunities (Gov. Code §§ 815, 815.2(b), 815.3, 818, 818.2, 818.8, 820, 820.2, 820.4, 820.6, 820.8, 821, 821.6, 822.2, 950.2, and Civil Code § 47). It is elementary that state statutory immunities cannot shield state officials from liability for violations of federal constitutional rights under 42 U.S.C. § 1983. *Martinez v. California*, 444 U.S. 277, 284 n.8 (1980) ('Conduct by persons acting under color of state law which is wrongful under 42 U.S.C. § 1983... cannot be immunized by state law.'); *Wallis v. Spencer*, 202 F.3d 1126, 1144 (9th Cir. 2000) ('State immunity laws do not shield the defendants from § 1983 claims.'). Because Plaintiff asserts federal Section 1983 claims, state tort immunity statutes are entirely impertinent.

Defense 28 asserts that violations of the California Constitution do not support damages claims under *Katzberg v. Regents of Univ. of Cal.*, 29 Cal. 4th 300 (2002). Plaintiff does not seek damages under the California Constitution. Plaintiff's damages claims arise exclusively under 42 U.S.C. § 1983 for violations of the Due Process Clause of the Fourteenth Amendment to the United States Constitution. Defense 28 is immaterial and impertinent.

4. Factually and Legally Contradicted Constitutional Defenses (Defenses 11, 12, 13)

Defense 12 claims that 'Plaintiff has no cause of action directly under the United States Constitution.' Plaintiff did not bring a direct cause of action under the Constitution; Plaintiff brought his claims under 42 U.S.C. § 1983, the congressionally enacted vehicle for enforcing constitutional violations. Defense 12 is a straw man.

Defense 13 asserts that state officials sued in their official capacity for damages are not 'persons' under § 1983, citing *Will v. Michigan Dept. of State Police*, 491 U.S. 58 (1989). But Plaintiff DID NOT sue Director Steve Gordon for damages in his official capacity. Director Gordon is sued strictly in his official capacity for prospective declaratory and injunctive relief

under *Ex parte Young*, 209 U.S. 123 (1908). The Supreme Court in *Will* explicitly reaffirmed that 'a state official in his or her official capacity, when sued for injunctive relief, would be a person under § 1983 because official-capacity actions for prospective relief are not treated as actions against the State.' 491 U.S. at 71 n.10. And Defendant Diana Candelaria is sued for damages in her INDIVIDUAL capacity, where *Will* does not apply. *Hafer v. Melo*, 502 U.S. 21, 31 (1991) ('state officials, sued in their individual capacities, are "persons" within the meaning of § 1983'). Defense 13 is legally meritless and mischaracterizes the complaint.

Defense 11 asserts Eleventh Amendment immunity. Under *Ex parte Young*, 209 U.S. at 159-60, and *Pennhurst State Sch. & Hosp. v. Halderman*, 465 U.S. 89, 102-03 (1984), the Eleventh Amendment does not bar suits against state officials in their official capacity seeking prospective equitable relief to end a continuing violation of federal law. Nor does the Eleventh Amendment bar Section 1983 individual-capacity damages actions against state officers. *Hafer*, 502 U.S. at 30-31. Defense 11 is insufficient as a matter of law.

5. DMV Driver Safety Hearing Officers Lack Quasi-Judicial Absolute Immunity (Defense 31)

Defense 31 claims that Defendants are entitled to absolute quasi-judicial immunity under *Butz v. Economou*, 438 U.S. 478 (1978). Under *Butz* and its progeny, absolute immunity extends only to administrative officials whose role is functionally comparable to that of a judge and who operate within a system featuring comprehensive institutional safeguards against bias and agency control. *Cleavinger v. Saxner*, 474 U.S. 193, 201-02 (1985).

California DMV Driver Safety Hearing Officers are executive branch civil-service employees who lack the independence of Article III judges or administrative law judges under the Administrative Procedure Act. Under California Vehicle Code §§ 14100 et seq., DMV hearing officers combine investigatory, prosecutorial, and adjudicative roles: they collect the DMV's enforcement evidence, introduce it at the hearing, rule on their own objections,

cross-examine the licensee, and render the decision. They are subordinate employees of the very enforcement agency whose administrative action is at issue. The California courts have repeatedly recognized that DMV hearing officers are not ALJs and do not possess judicial independence. See *Knight v. McMahon*, 12 Cal. 4th 458, 467 (1996); *Cal. Dept. of Motor Vehicles v. Office of Admin. Hearings*, 159 Cal. App. 4th 911, 920-22 (2008). Executive hearing officers are shielded, at most, by qualified immunity, not absolute quasi-judicial immunity. Defense 31 is legally insufficient.

6. Irrelevant Employment Discrimination Statute of Limitations (Defense 16)

Defense 16 asserts that Plaintiff's claims are barred by 'the applicable statute of limitations, including but not limited to, 42 U.S.C. § 2000e-5(f)(1), and sections 335.1 and 342 of the California Code of Civil Procedure. xx' (ECF No. 11 at 33:23-26).

42 U.S.C. § 2000e-5(f)(1) is the statute of limitations for Title VII employment discrimination claims. This is an administrative driver's license suspension case under 42 U.S.C. § 1983; there are no Title VII claims in this action. Citing Title VII illustrates reckless copy-pasting of boilerplate defenses. Furthermore, the applicable statute of limitations for Section 1983 actions arising in California is two years. Cal. Code Civ. Proc. § 335.1. The underlying APS hearing occurred on January 24, 2025, and Defendant Candelaria's decision issued on February 11, 2025. This action was filed on August 10, 2026, roughly eighteen months later—well within the two-year period. Defense 16 is legally baseless.

7. Improper 'Reservation of Rights' (Defense 33)

Defense 33 purports to 'reserve the right to amend this answer to assert additional defenses and/or supplement, alter, and/or change this answer as may be warranted by the revelation of information during discovery.' (ECF No. 11 at 35:17-20.)

A reservation of rights is not a valid affirmative defense. Under Federal Rule of Civil Procedure 15, a party may amend its pleading only by leave of court or with the opposing party's written consent. A party cannot circumvent Rule 15 by reserving rights in an answer. Courts in this district and circuit uniformly strike such reservations. See, e.g., *Solven v. M & T Bank*, 2018 WL 6314187, at *4 (N.D. Cal. Dec. 3, 2018) ('A reservation of rights to add affirmative defenses in the future is not a proper affirmative defense... and is STRICKEN.'); *Perez*, 2012 WL 1029425, at *11 (striking reservation of rights); *E. & J. Gallo Winery v. Encana Energy Servs., Inc.*, 2008 WL 2223259, at *4 (E.D. Cal. May 27, 2008) ('An attempt to reserve rights in the future is not a defense... It does not conform to Rule 8... Defendants cannot reserve a right to amend their answer.'). Defense 33 must be stricken.

8. Pure Boilerplate Lacking Any Factual Allegations (Defenses 5, 6, 8, 15, 17, 18, 19, 20, 21, 22, 23, 2

The remaining defenses are one-sentence legal conclusions devoid of any factual content, in blatant violation of *Twombly*, *Iqbal*, and *Barnes*. For example:

- Defense 8 asserts that 'Venue does not lie in this Court.' Defendants provide zero facts explaining why venue is improper in the Northern District of California. The underlying events occurred on Interstate 580 in Livermore, Alameda County, which is located squarely within the Northern District of California. 28 U.S.C. § 1391(b)(2); Civil L.R. 3-2(d). Venue is manifestly proper.

- Defense 23 asserts 'res judicata and/or collateral estoppel because Plaintiff failed to exhaust available judicial remedies.' Defendants do not identify any prior judgment, any issue preclusion, or any unexhausted remedy. In any event, exhaustion of state judicial remedies is not a prerequisite to a Section 1983 claim. *Patsy v. Bd. of Regents*, 457 U.S. 496, 516 (1982).

- Defenses 5 (laches), 6 (unclean hands), 15 (good faith / discretion), 17 (after-acquired evidence), 18 (required by law), 19 (failure to mitigate / speculative), 20 (comparative fault), 21 (estoppel and waiver), 22 (judicial estoppel), 24 (consent), 27 (indispensable parties), 29 (adequate remedy at law), 30 (impossibility), and 32 (qualified immunity) each consist of a single sentence reciting the title of a doctrine without a syllable of supporting factual narrative.

Pleading in this fashion forces Plaintiff and the Court to guess what facts, if any, Defendants believe support these thirty-three defenses. Under *Barnes*, 718 F. Supp. 2d at 1172, and *Perez*, 2012 WL 1029425, at *8, these unadorned legal boilerplate defenses must be stricken.

9. Glaring Drafting Artifacts ('xxx', 'xx') Confirm Unvetted Template Pleading

The unvetted, assembly-line nature of Defendants' affirmative defenses is laid bare on the face of the pleading itself:

- Defense 9: '...because Plaintiff failed to exhaust appropriate administrative remedies under California's Government Claims Act and xxx' (ECF No. 11 at 32:27-33:1).

- Defense 10: '...stated in the administrative claims filed with the California Government Claims Program in the Department of General Services. xxx' (ECF No. 11 at 33:4-7).

- Defense 16: '...sections 335.1 and 342 of the California Code of Civil Procedure. xx' (ECF No. 11 at 33:25-26).

The presence of literal template placeholders ('xxx' and 'xx') demonstrates beyond debate that counsel copied a stock template, failed to finish drafting, and filed the document without

even proofreading it. Such careless pleading degrades the integrity of court filings and underscores why the affirmative defenses should be stricken.

C. Defendants' Systematic Evasive Denials Violate Fed. R. Civ. P. 8(b)

Throughout paragraphs 1 through 136 of the Answer, Defendants deploy a canned, evasive formula:

> 'Paragraph [X] contains allegations to which no response is required because the allegations purport to be statements, summaries, or conclusions of law; or characterizations of Plaintiff's legal contentions based on those statements, summaries, or conclusions of law. To the extent that a response to those allegations is required, Defendants deny those allegations on the basis that the law speaks for itself and is the best evidence of its content. Defendants deny all other factual allegations in paragraph [X] not expressly admitted here.' (See, e.g., ECF No. 11 at ¶¶ 1, 2, 4-136.)

Under Federal Rule of Civil Procedure 8(b)(1)(B), a party responding to a pleading must 'admit or deny the allegations asserted against it by an opposing party.' Rule 8(b) provides only three permissible responses: (1) an admission, (2) a denial, or (3) a statement that the party lacks knowledge or information sufficient to form a belief. Responding that an allegation 'purports to be a conclusion of law' or that 'the law speaks for itself' is an improper, evasive evasion that violates Rule 8(b). See *State Farm Mut. Auto. Ins. Co. v. Riley*, 199 F.R.D. 276, 278 (N.D. Ill. 2001) (explaining that responses stating 'the document speaks for itself' or claiming an allegation is a 'legal conclusion' are improper evasions under Rule 8(b)); *Barnes*, 718 F. Supp. 2d at 1170. When Defendants are ordered to answer the operative FAC (Dkt. 6), the Court should direct them to comply strictly with Rule 8(b).

V. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court:

1. Grant this Motion and strike Defendants' Answer (ECF No. 11) in its entirety pursuant to Federal Rule of Civil Procedure 12(f);

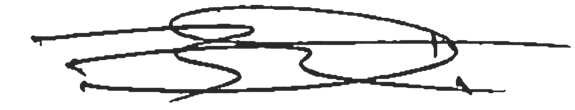
2. In the alternative, strike all thirty-three (33) Affirmative Defenses asserted in Defendants' Answer, or such defenses as the Court finds legally insufficient;

3. Order Defendants to file and serve an answer addressing the operative First Amended Complaint (Dkt. 6) within fourteen (14) days, in strict conformity with Federal Rule of Civil Procedure 8(b); and

4. Grant such other and further relief as the Court deems just and proper.

Dated: September 5, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI
Plaintiff

V.

DIANA CANDELARIA, individually;
STEVE GORDON, officially; and DOES 1-10
Defendants

/

Case Number: 3:26-cv-08272-LJC

PROOF OF SERVICE

I hereby certify that on September 5, 2026, I served a copy of the attached

Plaintiff's Notice of Motion and Motion to Strike Defendants' Answer (ECF No. 11) Pursuant to Fed. R. Civ. P. 12(f); Memorandum of Points and Authorities; [Proposed] Order,

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California:

(List Name and Address of Each Defendant or Attorney Served)

William J. McMahon, Deputy Attorney General
Office of the Attorney General, California Department of Justice
1515 Clay Street, 20th Floor, P.O. Box 70550
Oakland, CA 94612-0550
Attorneys for Defendants Diana Candelaria and Steve Gordon

Diana Candelaria and Steve Gordon
California Department of Motor Vehicles
Legal Affairs Division, Mail Station C128
2415 First Avenue
Sacramento, CA 95818

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngwa Nforbi, In Propria Persona

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **DIANA CANDELARIA, in her individual capacity; STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity; and DOES 1 through 10, inclusive,** Defendants.	Case No. 3:26-cv-08272-LJC **[PROPOSED] ORDER GRANTING PLAINTIFF'S MOTION TO STRIKE DEFENDANTS' ANSWER (ECF NO. 11) PURSUANT TO FED. R. CIV. P. 12(f)** Date: November 12, 2026 Time: 1:30 p.m. Courtroom: Videoconference (Zoom) Judge: Hon. Lisa J. Cisneros Action Filed: August 10, 2026 Operative FAC: August 17, 2026

[PROPOSED] ORDER GRANTING PLAINTIFF'S MOTION TO STRIKE DEFENDANTS' ANSWER (ECF N

PURSUANT TO FED. R. CIV. P. 12(f)

Plaintiff Brendan Ngwa Nforbi's Motion to Strike Defendants' Answer (ECF No. 11) Pursuant to Federal Rule of Civil Procedure 12(f); or, in the Alternative, to Strike Affirmative Defenses, came on regularly for hearing before this Court.

Having considered Plaintiff's Motion, the Memorandum of Points and Authorities, the Court's records and files in this action, and the arguments of the parties, and good cause appearing therefor, THE COURT FINDS AND ORDERS AS FOLLOWS:

1. Plaintiff's Motion to Strike is GRANTED.

2. Defendants Diana Candelaria and Steve Gordon's Answer (ECF No. 11), filed on September 4, 2026, is hereby STRICKEN in its entirety pursuant to Federal Rule of Civil Procedure 12(f), on the ground that it responds solely to Plaintiff's superseded original Complaint (Dkt. 1) rather than Plaintiff's operative First Amended Complaint (Dkt. 6), rendering it a procedural nullity, redundant, immaterial, and impertinent.

3. In the alternative, Defendants' thirty-three (33) Affirmative Defenses (ECF No. 11 at 32-35) are hereby STRICKEN as legally insufficient, impertinent, and failing to state plausible defenses under Federal Rules of Civil Procedure 8 and 12(f).

4. Defendants shall file and serve an answer addressing the operative First Amended Complaint (Dkt. 6) within fourteen (14) days of the date of this Order.

5. Any answer filed by Defendants shall strictly conform to Federal Rule of Civil Procedure 8(b), admitting or denying each allegation or stating lack of knowledge or information sufficient to form a belief, and shall not assert evasive boilerplate denials stating that 'the law speaks for itself.'

IT IS SO ORDERED.

Dated: _____, 2026

_____

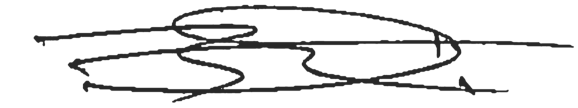
HON. LISA J. CISNEROS

United States Magistrate Judge

Presented by:

Dated: September 5, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona